

26CV01462 Uri Dolev vs Sharon Granoff et al

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-08-14

Motion: CMC; Special Motion to Strike (Anti-SLAPP)

Source URL: <https://www.santabarbara.courts.ca.gov/tentative-ruling/26cv01462>

Source SHA-256: 9587c5a6fa3c488c867a9b04a4049d2e207436f5f4e553442d976626fe3ccaba

Tentative Ruling: Uri Dolev vs Sharon Granoff et al

Case Number

26CV01462

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 08/14/2026 - 10:00

Nature of Proceedings

CMC; Special Motion to Strike (Anti-SLAPP)

Tentative Ruling

For all reasons stated herein, the anti-SLAPP motion filed by defendants Sharon Granoff and Marshall Thomas is denied.

Background:

On March 5, 2026, plaintiff Uri Dolev initiated this action by filing a complaint against defendants Sharon Granoff (Granoff) and Marshall Thomas (Thomas) setting forth five causes of action for (1) malicious prosecution, (2) abuse of process, (3) civil conspiracy, (4) intentional infliction of emotional distress, and (5) negligent infliction of emotional distress.

As alleged in the complaint:

Plaintiff, Granoff, and Thomas are residents of the County of Santa Barbara. (Compl., ¶¶ 1-3.)

In 1996, a judgment of dissolution was entered between plaintiff and Granoff, which awarded plaintiff 100 percent interest in certain real property located in Israel. (Compl., ¶ 5.)

In 2022, Granoff refused to comply with the 1996 judgment by refusing to sign the documents to transfer this property to plaintiff. (Compl., ¶ 6.)

In 2023, plaintiff sought intervention from this court. (Compl., ¶ 6.) On May 9, 2023, this court ordered its clerk to sign property transfer documents in Granoff's stead because of Granoff's refusal to obey a court order. (Ibid.)

In retaliation, Granoff initiated bad faith legal proceedings in Israel, including an action in the Great Rabbinical Court of Jerusalem. (Compl., ¶ 7.) On September 10, 2025, the Great Rabbinical Court found Granoff's actions to be "futile," marked by "lack of good faith," and based on "false representation." (Compl., ¶ 8.) During these proceedings before the Great Rabbinical Court, Granoff claimed she could not attend hearings due to financial hardship and safety concerns. (Compl., ¶ 9.) In truth, Granoff was vacationing in Mexico with defendant Thomas, with whom Granoff has a 30-year clandestine relationship. (Ibid.)

The complaint alleges that actions by Granoff before the Great Rabbinical Court were terminated in plaintiff's favor, and that defendants acted with malice to harass, exhaust, and financially deplete plaintiff. (Compl., ¶¶ 12-15.) Defendants committed willful acts in the use of process in California and in Israel to extort property interest from plaintiff that Granoff had already surrendered in 1996. (Compl., ¶ 17.)

"Thomas performed specific overt acts in furtherance of the conspiracy, including but not limited to: (a) managing the logistical and financial arrangements for the July 2025 Mexico travel to ensure Granoff's physical absence from the Jerusalem trial; (b) coordinating communications with foreign agents or counsel to maintain the 'false representation' of Granoff's inability to travel; and (c) providing the financial liquidity necessary to sustain a multi-jurisdictional campaign of attrition that exceeded Granoff's independent liquid assets." (Compl., ¶ 21.) "Defendant Thomas' participation was essential to Granoff's ability to maintain her 'false representation' to the courts for three decades." (Compl., ¶ 23.)

"At the time Granoff forced the Israeli proceedings to trial, she was aware Plaintiff was in a fragile and unstable state of health while recovering from a serious heart procedure. Despite this specific knowledge, Granoff and Thomas reached an agreement to use sham litigation to force Plaintiff to undergo the extreme stress of international travel and litigation under false pretenses." (Compl., ¶ 10.)

"This conduct was further exacerbated by the fact that Granoff did not notify Plaintiff of her intention to not attend the duly-noticed trial she initiated [in Israel], opting instead to vacation in Mexico with Thomas. Granoff's use of the legal system as a weapon of attrition to force a physically compromised individual into life-endangering travel, while she simultaneously enjoyed a tropical vacation, exceeds all bounds of decency usually tolerated in a civilized community." (Compl., ¶ 26.)

The complaint seeks to recover compensatory damages, attorney fees, travel costs, business losses, emotional distress and physical injury, punitive damages, and other relief. (Compl., p. 5, ll. 17-21.)

As argued by defendants, Granoff and plaintiff were formerly married. (Motion, p. 3, ll. 14-16.) They divorced in 1996. (Ibid.) Granoff and Thomas have cohabitated for numerous years, but they are not married. (Ibid.) "The subject of this dispute is a legal action in the Great Rabbinical Court of Jerusalem, which was brought by Granoff, on advice of Israeli legal counsel, to protect the interest of Granoff's family property located in Israel []." (Motion, p. 3, ll. 16-19.) "[Granoff] eventually lost the Underlying Lawsuit [in Israel] but disagrees with Plaintiff's assertions that the case was brought without merit." (Motion, p. 3, ll. 20-21.)

On March 30, 2026, defendants filed an anti-SLAPP motion pursuant to Code of Civil Procedure section 425.16 in response to the complaint. As argued by defendants, “Plaintiff has brought a derivative tort action against Defendants for Granoff having exercised her rights in Israel. Plaintiff alleges the Rabbinical Court was determining the status of property located in Israel, which was the subject of a marital dispute in California. Indeed, Plaintiff alleges that the California Court made certain determinations with respect to the property in Israel, and as a result of Granoff having lost the case in Israel, the court in California awarded attorney fees to Plaintiff. Therefore, the foreign case is necessarily and inextricably intertwined with the marital dispute being heard in the California Court, and all communications and conduct related to the Underlying Lawsuit are protected activity.” (Motion, p. 5, ll. 16-23.)

Analysis:

Under California’s anti-SLAPP statute, “[a] cause of action against a person arising from any act of that person in furtherance of the person’s right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim.” (Code Civ. Proc., § 425.16, subd. (a).) A “special motion may be filed within 60 days of the service of the complaint or, in the court’s discretion, at any later time upon terms it deems proper.” (Code Civ. Proc., § 425.16, subd. (f).)

“The anti-SLAPP statute does not insulate defendants from any liability for claims arising from the protected rights of petition or speech. It only provides a procedure for weeding out, at an early stage, meritless claims arising from protected activity. Resolution of an anti-SLAPP motion involves two steps. First, the defendant must establish that the challenged claim arises from activity protected by section 425.16. [Citation.] If the defendant makes the required showing, the burden shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success. We have described this second step as a ‘summary-judgment-like procedure.’ [Citation.] The court does not weigh evidence or resolve conflicting factual claims. Its inquiry is limited to whether the plaintiff has stated a legally sufficient claim and made a prima facie factual showing sufficient to sustain a favorable judgment. It accepts the plaintiff’s evidence as true, and evaluates the defendant’s showing only to determine if it defeats the plaintiff’s claim as a matter of law.” (Baral v. Schnitt (2016) 1 Cal.5th 376, 384-385.)

Protected activity under the first step includes: “(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.” (Code Civ. Proc., § 425.16, subd. (e).)

“At this first step, courts are to ‘consider the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability.’ [Citation.] The defendant’s burden is to identify what acts each challenged claim rests on and to show how those acts are protected under a statutorily defined category of protected activity.” (Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995, 1009 (Bonni).) “The anti-SLAPP statute’s definitional focus is not the form of the plaintiff’s cause of action but, rather, the defendant’s activity that gives rise to his or her asserted liability—and whether that activity constitutes protected speech or petitioning.” (Navellier v. Sletten (2002) 29 Cal.4th 82, 92.)

“The moving defendant’s burden is to demonstrate that the act or acts of which the plaintiff complains were taken ‘in furtherance of the [defendant]’s right of petition or free speech under the United States or California Constitution in connection with a public issue,’ as defined in the statute.” (Equilon Enterprises v. Consumer Cause, Inc. (2002) 29 Cal.4th 53, 67.) The anti-SLAPP statute “clearly limits the petitioning or free speech activity to that made pursuant to rights granted by the United States or California Constitutions, and neither Constitution grants a United States citizen the right to petition a foreign government.” (Guessous v. Chrome Hearts, LLC (2009) 179 Cal.App.4th 1177, 1185 (Guessous).) Therefore, “petitioning activity undertaken in a foreign country is not protected by the anti-SLAPP statute.” (Id. at p. 1186.)

Here, defendants concede that plaintiff’s claims in this action hinge on whether the petitioning activity in Israel was undertaken in bad faith. As argued by defendants, “Plaintiff has brought a derivative tort action against Defendants for

Granoff having exercised her rights in Israel.” (Motion, p. 5, ll. 16-17.) “Plaintiff filed a complaint for both malicious prosecution and abuse of process. The sole basis for both causes of action is the Underlying Lawsuit [in Isreal] filed by Granoff.” (Motion, p. 6, ll. 13-14.) “The sole allegation in the complaint which could give rise to a claim for abuse of process is that ‘Granoff initiated multiple bad-faith legal proceedings in Israel, including an action in the Great Rabbinical Court of Jerusalem.’ ” (Motion, p. 6, ll. 22-24.) “The sole allegations of conduct on the part of defendants giving rise to these causes of action are the underlying lawsuit in Israel.” (Motion, p. 7, ll. 12-13.)

Although the complaint references a divorce proceeding in 1996 and another court order in 2023, the claims asserted by plaintiff do not appear to seek to impose liability based on California petitioning activity. Defendants argue in their motion that the alleged basis for liability in the complaint is the petitioning activity in Isreal. The only evidence submitted by defendants is a short declaration from counsel attaching the complaint in this action. (Declaration of Lacy L. Taylor.) The court finds that defendants failed to meet their burden under step one “to identify what acts each challenged claim rests on and to show how those acts are protected under a statutorily defined category of protected activity.” (Bonni, supra, 11 Cal.5th at p. 1009.) As noted, the petitioning activity in Isreal is not protected activity under the anti-SLAPP statute. (Guessous, supra, 179 Cal.App.4th at pp. 1185-1186.) Based on the foregoing, the motion will be denied.

Judges

Judge Donna D. Geck

Dept. 4 SB-Anacapa

1100 Anacapa Street P.O. Box 21107

Santa Barbara, CA 93121-1107

US